



## NATIONAL TEXTILE UNIVERSITY ORDINANCE, 2002

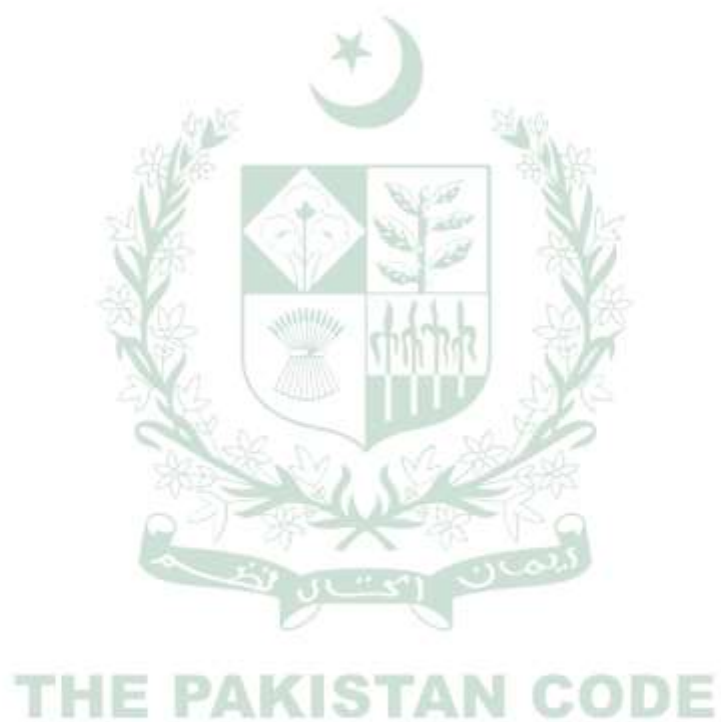


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# NATIONAL TEXTILE UNIVERSITY ORDINANCE, 2002

## ORDINANCE CXXIV OF 2002

[15th November, 2002]

### *An Ordinance to set-up a National Textile University*

WHEREAS it is expedient to establish a University at the national level for imparting education and providing research facilities in the field of textile technology;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

**1. Short title and commencement.**—(1) This Ordinance may be called the National Textile University Ordinance, 2002. (2) It shall come into force at once.

**2. Definitions.**—In this Ordinance, unless there is anything repugnant in the subject or text,—

- (a) “Academic Council” means the Academic Council constituted under section 14;
- (b) “Board” means the Board of Governors of the University constituted under section 11;
- (c) “Chancellor” means the Chancellor of the University;
- (d) “College” means a college constituted or affiliated with the University;
- (e) “Commission” means the Higher Education Commission set up by the Higher Education Commission Ordinance, 2002 (LIII of 2002);
- (f) “Committee” means the Executive Committee of the University constituted under Section 13;
- (g) “Dean” means the head of a department of the University;
- (h) “Director of Examination and Academics” means the Chief Coordinator of Examinations, Academics and Research of the University;
- (i) “Director Finance” means the Director Finance of the University;
- (j) “Institute” means an institute constituted or affiliated with the University;

- (k) “prescribed” means prescribed by the statutes, regulations or rules, as the case may be;
- (l) “Pro-Chancellor” means the Pro-Chancellor of the University appointed under section 8;
- (m) “Rector” means the Rector of the University;
- (n) “Registrar” means the Registrar of the University;
- (o) “regulations” means regulations made under this Ordinance;
- (p) “Rules” means the rules made under this Ordinance;
- (q) “statutes” means statutes made under section 19; and
- (r) “University” means the National University established under this Ordinance.

**3. Establishment and Incorporation of University.**—(1) There shall be established a University to be called the National Textile University consisting of—

- (a) the Chancellor, Pro-Chancellor, the Board, the Rector, Deans, the Committee and the Academic Council;
- (b) the members of such other councils, committees and advisory bodies as the Board may establish or authorize from time to time;
- (c) the members of the faculties and students of the colleges and institutes; and
- (d) such other officers and members of the staff as may be specified by the Board from time to time.

(2) The University shall be a body corporate by the name of the National Textile University, having perpetual succession and a common seal, with power, among others, to acquire, hold and dispose of any property and shall by the said name sue and be sued, so long as property acquired through Government is not sold or transferred as detailed in clause (v) of subsection (2) of section 4.

(3) The principal seat of the University shall be at Islamabad and it may set up any number or colleges and institutes at such places in Pakistan as the Board may determine.

(4) The present regular or full time employees of the National College of Textile Engineering, Faisalabad (NCTE) shall continue to be employed under this Ordinance in the National Textile University under existing terms and conditions not less favorable than those prevailing at present.

(5) The University shall be the successor of National College of Textile Engineering, Faisalabad for the purposes of the National College of Textile Engineering (Governing Body and Cess) Order, 1983 (President’s Order No. 11 of 1983) and shall be the beneficiary of the textile cess proceeds.

**4. Purposes, powers and functions of the University.**—(1) The purposes of the University shall be the promotion and dissemination of knowledge and technology in textile and to provide

for instruction, training, research, demonstration and service in the said area of learning as the Board may deem appropriate.

(2) The University shall be a fully autonomous body with freedom to govern its academic and administrative functions in order to achieve its objectives, in general and, in particular, freedom to-

- (a) determine courses of study in textile education, training and such other branches of learning as it may determine;
- (b) select and examine students;
- (c) award degrees, diplomas, certificates and other academic distinctions;
- (d) pursue and coordinate research;
- (e) affiliate itself or associate with other institutions, and establish faculties in Pakistan or abroad for better discharge of its functions and responsibilities;
- (f) decide teaching methods and strategies in order to ensure the most effective educational and research programmes;
- (g) use the financial and other resources allocated to it for the execution of its functions;
- (h) confer in the manner prescribed, honorary degrees or other distinctions on persons approved by the Board for the purpose,
- (i) provide for such instructions for persons not being students of the University as it may determine, and to grant certificates and diplomas to such persons;
- (j) confer degrees on persons who have carried on independent research as may be prescribed;
- (k) accept the examinations passed, and the periods of study spent by students of the University at other Universities and places of learning as equivalent to such examinations and periods of study in the University as it may determine and to withdraw such acceptance;
- (l) institute Professorships, Associate Professorships, Assistant Professorships, Research Associate ships and other posts and to make appointments thereto;
- (m) create posts for teaching, research, extension, administration and other related purposes and to appoint persons thereto;
- (n) institute and award fellowships, scholarships, exhibitions, bursaries, medals and prizes as may be prescribed;
- (o) establish institutes, faculties, libraries, laboratories, workshops, museums and other centers of learning for the development of teaching and research, and to make such arrangements for their maintenance, management and administration as it may determine;

- (p) make provisions for research and advisory services and with these objects to enter into arrangements with other institutions or with public bodies within Pakistan and abroad as may be prescribed;
- (q) enter into, carry out, vary or cancel contracts;
- (r) receive and manage property and grants, bequests, trusts, gifts, donations, endowments and other contributions made to it and to invest any funds, representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions and to convert one kind of property into other, in such manner as it may, deem fit, so long as property acquired through Government is not sold or transferred as detailed in clause (v) of subsection (2) of section 4;
- (s) provide for the printing and publication of research and other works;
- (t) authorize and agree when required by the colleges to the mobility of qualified staff among universities, research organizations and the Government or corporate bodies, subject to condition that the rights and privileges of the staff under this arrangement shall be protected;
- (u) do all such other acts and things, whether Incidental to the powers aforesaid or not, as may be requisite in order to further its objects as a place of education, learning and research; and
- (v) the assets and properties attached to and owned by the National College of Textile Engineering, Faisalabad and the liabilities, if any, of the College shall be transferred, to the proposed National Textile University and these assets and properties may not be sold or disposed or transferred without approval of the Government.

(3) The principal teaching facilities of the University shall consist of constituent colleges and institutes and such other colleges and institutes as may be determined by the Board from time to time.

(4) The colleges and institutes referred to in sub-section (3) that are in existence at the commencement of this Ordinance, shall continue to function under their existing administrative and financial arrangements, provided that the examination and other academic activities, including research shall be subject to coordination and supervision by the University.

(5) The University may, with the approval of the Board, provide facilities to the representatives of the Commission to enable them to verify that appropriate academic standards are being maintained by the University.

**5. University to be open to all classes, creeds, etc.—**The University shall be open to all persons of either sex of whatever religion, race, class, creed, colour or domicile who qualify for admission to the courses of study offered by the University based on the criteria and policy determined by the Board, and no such person shall be denied the privileges of the University on the round only of sex, religion, race, class, creed, colour or domicile.

**6. Officers of the University.—**(1) The following shall be officers of the University, namely:—



- (a) the Chancellor;
- (b) the Pro-Chancellor;
- (c) the Rector; and
- (d) such person or persons as may be prescribed to be an officer or officers by the Board.

**7. The Chancellor.**—(1) President of Pakistan shall be the Chancellor of the University.

(2) The Chancellor shall preside over at the convocations of the University and meetings at which business of the University is transacted.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(4) If the Chancellor is satisfied, that the proceedings or orders of any authority are not in accordance with the provisions of this Ordinance, the statutes rules or regulations, he may, after calling upon such authority to show cause in writing, annul such proceedings or orders.

**8. The Pro-Chancellor.**—(1) The Pro-Chancellor shall be appointed by the Chancellor on recommendations of the Board for such period and on such terms and conditions as the Chancellor may determine.

(2) The Pro-Chancellor shall perform functions of the Chancellor, in the absence of the Chancellor, and such other functions as may be entrusted to him by the Chancellor.

(3) The Pro-Chancellor shall hold office for a term of four years and shall be eligible for re-appointment for a similar or such shorter terms as the Board may decide and his other terms and conditions of service shall be such as the Board may, determine.

(4) The Pro-Chancellor shall be the Chief Executive of the University in all the fields of academics and administration, and shall have overall responsibility for the direction, organization, administration and programmes of the University in accordance with the guidelines and general Policies formulated by the Board and for the implementation of the decisions and policies of the Board and, in particular, he shall without prejudice to the provisions of subsection (4) of section 4,—

- (a) oversee, monitor and supervise all academic activities, including examinations and applied research to ensure that proper academic standards are maintained;
- (b) exercise administrative control over the academic and administrative staff employed by the University including their recruitment;
- (c) submit the plans of work and end budget estimates of the University for the approval of the Board;
- (d) direct the activities connected with execution of programmes for instruction, training, research, demonstration and service, and authorize expenditure provided for in the budget as approved by the Board;

- (e) make appointments of teachers, officers and members of the staff of the University and other persons on regular basis in accordance with the policies and procedures approved by the Board so as to ensure the highest intellectual and moral qualities in the persons appointed;
- (f) appoint, subject to approval of the Board, on contract, teachers, officers and members of the staff of the University and such other persons as may be necessary for a period not exceeding two years;
- (g) submit to the Board, in accordance with the rules of procedure framed by it, reports on the activities of the University and the execution of the plans of works;
- (h) prepare and revise from time to time statutes and regulations with the approval of the Board for the efficient and effective operations of the University; and ,
- (i) provide the necessary service to the Board.

**9. Rector.**—(1) The Board shall appoint a person, having expertise or understanding of textile area with recognized standing, as Rector.

(2) The Rector shall, in the absence of the Pro-Chancellor, perform the functions of the Pro-Chancellor.

(3) The Rector shall hold the office for a term of four years and shall be eligible for re-appointment for a similar term or such shorter terms as the Board may decide and his other terms and conditions of service shall be such.

**10. Authorities**—The following shall be the authorities of the University, namely;--

- (a) the Board of Governors;
- (b) the Executive Committee;
- (c) the Academic Council;
- (d) the Faculty Board of Studies; and,
- (e) such other authorities as may be constituted by the Board.

**11. The Board of Governors.**—(1) The general supervision and control of the affairs of the University and the power to lay down the policies of the University, shall vest in a Board. of Governors consisting of—

- (i) eight members of the of National Textile Education Foundation;
- (ii) Chairman, All Pakistan Textile Mills Association (APTMA);
- (iii) Chairman, Higher Education Commission or his nominee not below the rank of a professor or an officer of BPS-20;



- (iv) two Textile professionals of national or international repute to be nominated by the National Textile Education Foundation;
- (v) a nominee from Lahore University of Management Sciences (LUMS);
- (vi) Vice-Chancellor of a public University of Engineering and Technology;
- (vii) two representatives of the Federal Government, preferably the Secretary, Ministry of Industries and Production and the Textile Commissioner;
- (viii) two members nominated, by All Pakistan Textile Mills Association (APTMA); and
- (ix) two nominees of the Provincial Governments of the Punjab, Sindh, N.W.F.P. and Baluchistan (by rotation, for a term of two years). The nominees should be eminent textile professionals or industrialists.

(2) Registrar will be the member and Secretary of the Board, but shall not be entitled to vote.

(3) The Chancellor may, in consultation with the Board, appoint any other person, including a scientist or educationist, as member of the Board.

(4) The existence of a vacancy in, or defect in the constitution of the Board, shall not invalidate any act or proceedings of the Board.

(5) The Board may direct any officer, member of the faculty or any other person to be in attendance during all or any of its meetings.

(6) Without prejudice to the generality of the provisions of subsection (1), the Board shall exercise and perform the following powers and functions, namely:-

- (a) to hold, control and administer the property, funds and resources of the University and to borrow or raise money for the purpose of the University upon such security as may be required;
- (b) to formulate or approve the principles, policies and plans governing the activities and operations of the University, so as to ensure that the academic staff enjoy academic freedom in their research and educational work;
- (c) to prepare and revise, from time to time the rules and regulations for the efficient and effective operation of the University;
- (d) to review and approve the creation of any standing component of the University, such as faculties, and councils and other administrative bodies necessary to assist or improve the working of the University;

- (e) to approve the plans of work and annual budget of the University submitted by the Director Finance, the budget being based on the budget prepared and submitted by the constituent or affiliated college or institutes;
- (f) to require and consider reports submitted by the officers of the University relating to the activities of the University and the execution of the plans of work and to direct the concerned authority to submit reports relating to any matter specified by the Broad;
- (g) to create such academic or administrative posts as it may consider necessary for the purpose of the University and to approve appointments to such of these posts as it may specify, including the posts of deans, directors, professors, associate professors, assistant professors, lecturers and demonstrators;
- (h) to select and appoint all administrative and academic staff of the University;
- (i) to fix the scales of pay allowances and honoraria for the staff, both academic and administrative, commensurate with their qualification and experience in order to attract the best talent from within and outside Pakistan for the University;
- (j) to undertake responsibility for financial integrity of the University, including responsibility for ensuring effectiveness of its future operations and their continuity and the preservation of the autonomy of the University;
- (k) to approve all affiliations and other similar arrangements through which colleges, institutions or individuals may become associated with the University within Pakistan and abroad;
- (l) to appoint from amongst its members such committees or sub-committees as may in the opinion of the Broad necessary for its more efficient and effective operation; and
- (m) to take all such initiatives as it may consider necessary or desirable for the efficient and effective management and functioning of the University.

(7) The Board shall lay down its own rules of procedure and may amend or modify them from time to time.

(8) The Board may delegate all or any of its powers and functions to an Executive Committee, sub-committee or Rector.

**12. Meeting of the Board, etc—**(1) The Board shall meet at least twice during a year for regular or scheduled meetings and may meet at any other time at which a special meeting thereof may be called by the Chairman of the Board.

(2) Not less than ten clear day's notice of a special meeting shall be given to the members of the Board and the agenda of the meeting shall be restricted to the matters specified in the agenda to be annexed to such notice,

(3) The quorum for a meeting of the Board shall not be less than fifty percent of its members.

**13. Executive Committee.**— (1) The Executive Committee shall comprise the following, namely:—

- (a) Pro-Chancellor; who shall also be the Chairman of the Executive Committee;
- (b) Rector;
- (c) Chairman, APTMA; and
- (d) Four members of the Board of Governors representing National Textile Education Foundation.

(2) The Executive Committee shall deliberate on various aspects related to the functioning of the University and recommend specific measures to the Board for approval and shall, in particular-

- (a) delineate priorities for research;
- (b) recommend allocation of training and research funds to the colleges and institutes;
- (c) guide and direct the Academic Council and Faculty Board of Studies of each college and institute on all matters relating to the academics, including syllabi and duration of various courses;
- (d) recommend disciplines for all academic studies in the colleges and institutes and help in creation of necessary infrastructure for the same;
- (e) help to induct highly competent scientific and technical talent into the faculty of each college to enhance the quality of education and research;
- (f) lay down guidelines for proper and efficient conduct of professional examination at the colleges and institutes;
- (g) recommend such measures which would foster and enhance interaction and collaboration between the University and the existing national and international organizations, institutions and research centers and the industrial base;
- (h) recommend apportioning of the national research and development budget for the University;
- (i) work out and propose affiliation measures with foreign institutions of repute;
- (j) decide methods and strategies in order to ensure the most effective scientific and, technological programmes;

- (k) coordinate with relevant Government Ministries, Universities and Commission;
- (l) propose statutes to the Board for approval; and
- (m) prepare regulations approval by the Board.

**14. Academic Council.**—(1) The Academic Council shall comprise the following, namely:—

- (a) Rector who shall be the Chairman of the Academic Council;
- (b) the Deans of all educational departments;
- (c) textile professionals; and
- (d) Chairman, APTMA, Punjab.

(2) The Academic Council shall act as an advisory as well as an implementing body of the decisions of the Executive Committee on all matters relating to the conduct of examinations, revision and updating of courses and syllabi, quality of education, duration of all courses including conduct of post-graduate classes in specified disciplines.

(3) The Academic Council shall also help the Pro-Chancellor in evaluating, proposing and coordinating research and development, projects and respective, institutes and colleges.

**15. Council of Regents.** — (1) The University may set up a Council of Regents consisting of such members as the Board may determine.

(2) The members of the Council of Regents shall be appointed from amongst heads of Government and non-Government organizations, bodies and institutions of repute, both national and foreign, interested in the educational promotion and its patronage.

(3) The business of the Council of Regents shall be regulated by the Board as may be prescribed.

**16. Academic and administrative staff.** —The academic and administrative staff of the University shall be selected with a view to achieve its stated objectives and the basic criteria of their selection shall be the highest standards of competence, integrity and efficiency.

**17. University funds, audit and accounts.** — (1) The University shall have a Fund to which shall be credited all direct donations, trusts, bequests, endowments, grants, assistance from international agencies, contributions, shares or fees, and income from any other sources and which shall be under the control of the Board.

(2) The colleges and institutes shall receive their finances from the following sources, namely:-

- (a) annual budget from the University;

- (b) proportionate share of fees including examinations fee through the University budget;
- (c) any grants from the Governments;
- (d) any sale of royalties or publications; and
- (e) any assistance from the University Fund as decided by the Board.

(3) Capital and recurrent expenditure of the University shall be met from the allocation made by the Board out of the University Fund.

(4) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability for the University, or which may involve an activity not included in its programmes for the time being, shall be accepted without prior approval of the Board.

(5) The accounts of the University shall be maintained in such form and manner as may be determined by the Board and shall be audited each year within six months of the closing of the financial year of the University by a Chartered Accountant appointed by the Board.

(6) The accounts, together with the report of the auditor thereon, shall be submitted to the Board for approval.

(7) The auditors report shall certify that the auditor has complied with the standards of audit and certification laid down by the Institute of Chartered Accountants of Pakistan.

**18. Pension, insurance, gratuity, provident fund and benevolent Fund.**—(1) The University shall constitute for the benefit of its officers teachers and other employees in such manner and subject to such condition as may be prescribed such pension, insurance, gratuity, provident fund and benevolent fund and other welfare schemes as it may deem fit.

(2) Where any Provident Fund has been constituted under this Ordinance, the provisions of the Provident Funds Act, 1925 (XIX of 1925), shall apply to such Fund as if it were the Government Provident Fund.

**19. Statutes.** — (1) Subject to the provisions of this Ordinance, statutes may be made to regulate or prescribe all or any of the following matters, namely:—

- (a) creation of the institutes and faculties;
- (b) service, pension and fringe benefits for University employees and terms and conditions of their service;
- (c) condition of appointment of Professors Emeritus and award of honorary degrees;
- (d) efficiency and discipline of the University employees; and
- (e) all other matters required to be regulated by statutes.

(2) No statute shall be valid until it has been approved by the Board or Chancellor.



**20. Regulations.** — (1) Subject to the provisions of this Ordinance and the statutes, the Executive Committee may make regulations for all or any of the following matters, namely:-

- (a) scheme of studies and research, including the duration of courses, number of subjects or papers for examination;
- (b) syllabi and courses of study and research programmes leading to degrees, diplomas or certificates;
- (c) methodology for selection and admission of students;
- (d) conduct and supervision of examination, appointment of examiners and scrutiny and tabulation of results;
- (e) determination of fees and other charges for admission to various courses;
- (f) maintenance of discipline amongst the students and schemes for their welfare;
- (g) institution of fellowships, prizes and medals, honorarium and other financial assistance to students and research scholars;
- (h) conduct of convocations and form of academic costumes; and
- (i) all other academic matters which are to be or may be prescribed.

(2) The regulation shall be approved by the Board on recommendations of the committee.

(3) No regulation shall be valid until it has been approved by the Board.

**21. Rules.**— The Executive Committee may make rules for implementation of statutes or regulations where so required under the statutes or regulations or make rules to regulate any matter relating to the affairs of the University which under this Ordinance are not specifically required to be provided for by the statutes or regulations.

**22. Indemnity and bar of Jurisdiction.** — (1) No suit prosecution or other legal proceedings shall lie against any person or authority for anything which is in good faith done or intended to be done under this Ordinance.

(2) No decision taken or act or thing done, by the Chancellor, Pro-Chancellor of the Board shall be called in question before any Court or other authority.

**23. Ordinance to override other laws.** —This Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force.

**24. Removal of difficulties.**— (1) If any question arises as to the interpretation of any of the provisions of the Ordinance, it shall be placed before the Board whose decision thereon will be final.

(2) If any difficulty arises in giving effect to any provision of this Ordinance, the Board may make such order or direction, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing such difficulty.



(3) Where this Ordinance makes any provision for anything to be done but no provision or no sufficient provision has been made in respect of the authority by whom, or the time at which, or the manner in which, shall be done, then, it shall be done by such authority, at such time, or; such manner as the Board may direct.

